

26STCV09282 26STCV09282

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Stephen Foster v. Los Angeles Unified School District

Thursday,

June 18, 2026

[TENTATIVE] ORDER OVERRULING DEMURRER
TO PLAINTIFF'S FIRST AMENDED COMPLAINT (9827)

I.

BACKGROUND

The first

amended complaint filed June 10, 2026, alleges that Defendant employed Plaintiff for 30 years during which time Plaintiff served as an Assistant Principal for 20 years. Defendant allegedly discriminated against Plaintiff based on his disability stemming from a work-related injury. Defendant allegedly failed to provide reasonable accommodation and instead placed Plaintiff on unpaid leave.

Plaintiff

alleges he was constructively terminated as Defendant did not honor Plaintiff's request to return to work. The first amended complaint asserts claims for disability discrimination, failure to reasonable accommodate, and failure to engage in the interactive process in good faith all in violation of the Fair Employment and Housing Act ("FEHA").

Defendant

demurs to all causes of action. .

II.

LEGAL STANDARDS

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

A demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams

v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

A pleading is required to assert general

allegations of ultimate fact. Evidentiary facts are not required. (Quelimane Co. v. Stewart Title Guaranty

Co. (1998) 19 Cal. 4th 26, 47; Lim

v. The.TV Corp. Internat.

(2002) 99 Cal. App. 4th 684, 690.) However, unlike federal courts,

California state courts are not a notice pleading jurisdiction, and notice

alone is not a sufficient basis for any pleading. California is a fact pleading

jurisdiction. Merely putting an opposing party on notice is not sufficient. (Bach

v. County of Butte (1983) 147

Cal.App.3d 554, 561; see Diodes,

Inc. v. Franzen (1968) 260

Cal.App.2d 244, 250.)

III.

DISCUSSION

A.

The

allegations are not “legal conclusions” unsupported by any facts as Defendant contends.

Defendant argues that the allegations

“parrot” the statute or jury instruction without providing any factual

predicate. (Dem 3:3-4.) The difference

between a conclusion of law and an ultimate fact is “not at all clear.” (Perkins at 7.) The language must be read in the context of the complaint as a

whole. (Perkins

v. Superior Court (1981) 117

Cal.App.3d 1, 6 [“What

is important is that the complaint as a whole contain sufficient facts to

apprise the defendant of the basis upon which the plaintiff is seeking relief.”].)

Thus, each cause of action alleged must be read in the context of the specific “common

facts” from which each cause of action is based. (FAC ¶¶ 12-17.) Demurrer on

this ground is OVERRULED.

B.

First

cause of action for disability discrimination

To state a claim for disability discrimination in violation of FEHA, the plaintiff must show that he or she "(1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived disability." (Gov. Code, § 12940 subd. (a).)

Defendant contends Plaintiff fails to allege facts supporting the allegation that Plaintiff's disability was a substantial motivating reason for the adverse employment action. Discriminatory motive, however, need not be established by direct evidence and may be inferred from circumstantial facts. (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310.) Moreover, at the pleading stage, a plaintiff is required to plead ultimate facts, not the evidence by which those facts will ultimately be proved. (*Perkins, supra.*) The relevant question, therefore, is whether the facts alleged, taken as true and considered together, are sufficient to support a reasonable inference that Plaintiff's disability was a substantial motivating reason for Defendant's challenged conduct.

The timeline provides the necessary inference of discrimination. Plaintiff alleges he suffered injury on December 12, 2022. He began medical leave on January 13, 2023. (FAC ¶ 14.) Plaintiff requested reasonable accommodation, instead Defendant placed Plaintiff on medical leave beginning January 22, 2023 until his constructive termination on January 31, 2025 during which time Plaintiff participated in multiple meetings with Defendant's "Return to Work" team to be reinstated to a position consistent with his physical restrictions. However, these requests were never honored by Defendant. As a result, the pleading alleges Plaintiff was forced to use his accrued paid sick leave time beginning in January of 2023, until his benefits ran out on January 31, 2025. By that time, Plaintiff had been attempting to be reinstated to work for over two years without any cooperation from Defendant, although Plaintiff alleges he was able to work with reasonable accommodation. (FAC ¶ 15-17.)

The alleged refusal to accommodate Plaintiff or to reinstate Plaintiff for over a two-year period implies that the disability was the substantial motivating factor.

Defendant also argues that Plaintiff must allege a statement, communication, or conduct by any decision-maker linking

Plaintiff's disability to the alleged constructive discharge. Defendant does not cite any authority for this level of specificity. However, Plaintiff alleges he participated in multiple meetings with Defendant's Return to Work team, who did not honor Plaintiff's requests. (FAC ¶ 15.) Plaintiff alleges he reasonably concluded that further efforts would be futile, and he resigned from employment. (FAC ¶ 16.)

C.

Second

cause of action for failure to accommodate

FEHA

imposes an affirmative obligation on the employer to reasonably accommodate a known disability of an employee only where the accommodations would enable the employee to perform the essential functions of his job. (Gov.

Code, § 12940 subd. (m); Nadaf-Rahrov

v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th

952, 975 ["We conclude an employer is liable

under section 12940(m) for failing to accommodate an employee only if the work environment could have been modified or adjusted in a manner that would have enabled the employee to perform the essential functions of the job."].)

The

elements of this claim are similar to a disability discrimination claim,

however, Plaintiff does not have to show an adverse employment action, as the

failure to adhere to statutory obligations is itself a violation. (Jensen

v. Wells Fargo Bank (2000) 85 Cal.App.4th 245, 256

Plaintiff

also does not need to show he is a "qualified" employee. (Bagatti

v. Department of Rehabilitation (2002) 97 Cal.App.4th 344, 361

fn. 4.)

Defendant

argues Plaintiff does not allege what specific accommodation was requested, the specific position that was available, when the request was made, to whom it was directed and the Defendant's response thereto. There is no authority cited

requiring this level of specificity. Plaintiff is not required to allege the

specific evidence necessary to prove the claim. General rules of pleading do

not require that the plaintiff plead evidentiary facts supporting the

allegation of ultimate fact. (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1390 ["It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts."].)

D. Third

cause of action for failure to engage in good faith in the interactive process.

FEHA

imposes a duty on an employer to engage in a timely, good-faith interactive process to identify a reasonable accommodation for an employee with a known disability. (Gov. Code, § 12940, subd. (n).) Although failure to engage in the interactive process and failure to provide a reasonable accommodation are separate causes of action, the two duties are closely related. As Gelfo v. Lockheed Martin Corp. (2006) 140 Cal.App.4th 34, 54, explains, "[e]ach necessarily implicates the other."

Plaintiff

alleges that he participated in the interactive process on numerous occasions between 2023 and 2025. (FAC ¶ 62.) Defendant argues these allegations are insufficient because Plaintiff does not describe what occurred at each meeting or identify the specific matters discussed. Defendant, however, cites no authority requiring that degree of evidentiary detail at the pleading stage. Plaintiff need not plead the substance of every interactive-process meeting. The issue is whether the FAC alleges sufficient ultimate facts to support the claim that Defendant failed to participate in the process in a timely and good-faith manner.

Regardless,

the first amended complaint read as a whole alleges that disability discrimination was the motivating factor. This inference supports the requirement that Defendant acted unreasonably even if it participated in meetings with Plaintiff over a two-year period.

IV.

CONCLUSION

Based on the foregoing, demurrer to the complaint is OVERRULED. Defendant is ordered to answer within 10 days.